

Naval Surface Warfare Center, Panama City Division (NSWC PCD)

Commercial Solutions Opening (CSO)

for

Next Generation Underwater Breathing Apparatus

Relevant to Enhancing the Military Diver Safety with Minimal Acoustic and Magnetic Signature, with Long-term Viability Through a Robust and Sustainable Logistics Framework

Opening Number: N61331-26-S-NQ17

Issued by:

Naval Surface Warfare Center, Panama City Division (NSWC PCD)
Panama City, FL 32407

The procedures outlined in this CSO apply to Areas of Interest (AOI) posted under N61331-26-S-NQ17

OBJECTIVE: This announcement is intended to enable the rapid selection of innovative commercial solutions in a competitive environment through a three-phased process. Including commercially available technologies fueled by commercial or strategic investment, concept demonstrations, pilots, and agile development activities that can incrementally improve commercial technologies, existing Government-owned capabilities, or concepts for defense application.

SECTION 1 – INTRODUCTION

1.1 Background and Authority

NSWC PCD's mission is to conduct research, development test and evaluation, in-service support of both manned and unmanned mine warfare systems, subsea/seabed warfare systems, naval special warfare systems, diving and life support systems, amphibious/expeditionary warfare systems, other missions that occur primarily in littoral regional to execute responsibility as assigned by Commander, Naval Surface Warfare Center.

To achieve these mission imperatives, NSWC PCD regularly partners with private industry using a variety of collaborative tools in order to streamline the incorporation of innovative technology into the products and services delivered to the Warfighter.

To accelerate the adoption of advanced technology, curate solutions to technology gaps, and lead rapid prototyping NSWC PCD issues this CSO as authorized by 10 U.S.C. 3458 for the acquisition of innovative commercial products or commercial services through the use of a general solicitation.

In this context "Innovative" means—

1. Any technology, process, or method, including research and development, that is new as of the date of submission of a proposal; or
2. Any application that is new as of the date of submission of a proposal of a technology, process, or method existing as of such date.

Expeditionary Warfare: Diving and Life Support Systems – Diving Fleet Systems

NSWC PCD in support of PMS 408 has an urgent requirement to procure a sustainable, long-term replacement for the legacy MK16 UBA. NSWC PCD seeks mature, non-developmental, and commercially available (or readily adaptable) closed -circuit, back-mounted Underwater Breathing Apparatus (UBA) systems to replace the legacy MK16 UBA. This "Next Generation" system must be a commercially available or adaptable solution that incorporates essential technology upgrades and modernized features focused on enhancing diver safety. Industry partners are challenged to provide a proven, next-generation solution that directly addresses the

operational and safety limitations of the current system. The core challenge is to deliver a UBA that enhances diver safety through integrated modern technology, ensures mission success with a minimal acoustic and magnetic signature, and guarantees long-term viability through a robust and sustainable logistics framework. This request is for a complete system solution that is currently in production and can be evaluated in the near term. The key capabilities and secondary and tertiary attributes are provided in the area of interest (AOI) document.

Pursuant to Defense Federal Acquisition Regulation Supplement (DFARS) 212.7002, NSWC PCD will only use this CSO to obtain innovative solutions or potential capabilities that fulfill requirements and to close capability gaps or provide potential innovative technological advancements. All products acquired using this CSO will be treated as commercial products, awarded on a fixed-price basis.

In accordance with DFARS 206.102-70(a), this announcement is a competitive selection of proposals based on a review by scientific, technological, or other subject-matter expert peers and is a competitive procedure. As a result of the competitive processes used under this CSO announcement, multiple awards may be executed. The methods utilized to execute awards include FAR-based contract or Other Transaction Agreement (OTA).

Under the authority of 10 U.S.C. 4022, NSWC PCD may award an OTA to vendors to carry out prototype project(s) directly relevant to enhancing the mission effectiveness of personnel of the Department of War (DoW) or improving platforms, systems, components, or materials proposed to be acquired or developed by the DoW, or to improvement of platforms, systems, components, or materials in use by the armed forces.

Under the authority of 10 U.S.C. 4023, NSWC PCD may procure (by contract or otherwise) ordnance, signal, chemical activity, transportation, energy, medical, spaceflight, telecommunications, and aeronautical supplies, including parts and accessories, and designs thereof, that the Secretary of War or the Secretary of the Navy concerned considers necessary for experimental or test purposes in the development of the best supplies that are needed for the national defense.

1.2 General Solicitation and Evaluation Procedures

NSWC PCD CSO is soliciting Solution Briefs in response to this individual Area of Interest (AOI). All Solution Briefs submitted in response to this AOI will be governed by this CSO unless otherwise noted in the AOI.

The AOI is written in broad terms to maximize latitude in creativity when approaching a problem and to allow for maximum participation from nontraditional defense contractors and interested parties (entities) who may be unfamiliar with submitting traditional proposals to Government solicitations. The Government may modify the AOI during the opening. Evaluation of responses will consist of the following three phases:

1) Solution Brief

2) Pitch

3) Full written proposal – described in more detail here:

Phase 1 Solution Briefs:

Solution Briefs submitted in response to an AOI shall be submitted as specified in Section 2 of this CSO. The Government will evaluate Solution Briefs against the criteria stated in this CSO. The Government will not pay entities for the costs associated with Solution Brief submissions.

Phase 2 Pitch Session:

Respondents whose Solution Briefs are evaluated to be of merit may be invited to provide a pitch following the instructions provided in Section 2.4 of this CSO. The Government reserves the right to limit the number of parties invited to pitch. As such, a company's solution may be evaluated to be of merit but not invited to pitch. In the event that the Government requires a demonstration, additional information will be provided in the specific AOI highlighting those procedures, otherwise Phase 2 will be comprised solely of the pitch. The Government will not pay entities for costs associated with pitches.

Phase 3 Proposal:

Those entities whose Solution Brief and Pitch are evaluated to be of merit and are selected for potential award may be invited to submit a full written proposal following the instructions provided in Section 2.5 of this CSO. The Government will not pay entities for costs associated with the proposal in Phase 3, unless otherwise stipulated.

SECTION 2 – GUIDELINES FOR SUBMISSION

2.1 General Guidelines

1. Unnecessarily elaborate brochures or proposals are not desired.
2. Use of a diagram(s) or figure(s) to depict the essence of the proposed solution is strongly encouraged.
3. Companies may submit multiple Solution Briefs in response to any single AOI if each submission represents a separate and distinct concept.
4. The period of performance for any Solution Brief or proposal submitted under this CSO should generally be no greater than 24 months.
5. Technical data with military application may require appropriate approval, authorization, or license for lawful exportation.
6. All Solution Briefs, Pitches, and Proposals shall be unclassified. Solution Briefs, Pitches, and Proposals containing data that is not to be disclosed to the public for any purpose or used by the Government except for evaluation purposes **shall** include the following sentences on the cover page:

“This [select one: Solution Brief, Pitch, or Proposal] includes data that shall not be disclosed outside the Government, except to non-Government personnel for evaluation purposes, and shall not be duplicated, used, or disclosed -- in whole or in part -- for any purpose other than to evaluate this submission. If, however, an agreement is awarded to this Company as a result of -- or in connection with -- the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent agreed upon by both parties in the resulting agreement. This restriction does not limit the Government's right to use the information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets]”

Each restricted data sheet should be marked as follows:

“Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.”

1. Foreign-owned businesses may independently submit a solution or do so as part of a teaming arrangement with one or more United States-owned businesses. However, the ability to obtain a resulting agreement or contract based upon a submission may depend upon the ability of the foreign-owned business to obtain necessary clearances and approvals to obtain proscribed information.
2. Submissions must be submitted electronically.
3. Submissions sent through other channels or after the AOI period has ended will not be reviewed or evaluated.
4. Solution Briefs that are chosen for the Phase 2 Pitch will be notified in writing as soon as practicable.

2.2 Phase 1: Solution Brief

Solution Briefs should not exceed twenty (20) written pages using 12-point font. Alternatively, Solution Briefs may take the form of briefing slides which should not exceed thirty (30) slides. Briefs should include at a minimum:

- Title Page (does not count against page limit)
- Entity Name, Date, Point of Contact Name, E-Mail Address, Phone, and Address
- Executive Summary of the technology (one page)
- Describe the concept and unique aspects of the technology as it relates to the AOI
- Identify whether the solution is an existing technology that has satisfied a pilot or demonstration (i.e., commercially ready and viable technology), or if the solution will require development for defense application.
- If development or adaptation is proposed, identify a suggested path to mature the technology

-Identify aspects of the solution which may be considered proprietary or Intellectual Property (IP) (does not count against page limit)

-Provide a brief overview of the company, including a summary of product commercialization and go-to-market strategy.

2.3 Basis of Evaluation

All solution briefs correctly submitted in response to an AOI will be evaluated against the stated criteria below.

1. (Y/N) The proposed innovative commercial solution, technology, process, or method, is new as of the date of submission of a proposal; or is an application that is new as of the date of submission of a proposal of a technology, process, or method existing as of such date.
2. Relevance of the Solution Brief in addressing the AOI.
3. Technical Merit and feasibility of the solution to address Government AOI problem statement.
4. A quick, reasonable, and efficient way exists for the DoW to test the innovative commercial solution, within a specified duration, whether outside or integrated within the DoW infrastructures or networks, as appropriate. Additional technical evaluation criteria specific to a particular project may be used. In these instances, the additional criteria will be posted within the AOI announcement on the sam.gov.
5. Solution Briefs will be evaluated on the basis of the merit of the proposed concept in addressing the AOI, not against other Solution Briefs submitted in response to the same AOI.

All submissions will be evaluated, however, only a select few may be invited to pitch.

The government reserves the right to limit the number of entities invited to pitch. As such, a company's solution may be evaluated to be of merit but not invited to pitch. Solution Briefs that are chosen for the Phase 2 Pitch will be notified in writing as soon as practicable.

2.4 Phase 2: Pitch

In Phase 2, entities shall provide an in-person at production facility or virtual pitch to demonstrate and provide further details on their proposed innovative commercial solution and the technical and business viability of the proposed solution. The Government may elect to use external market research during the Pitch to evaluate viability. In addition to the Pitch, the Government, at its discretion, may request for consideration an additional written submission to further supplement the information provided in the Phase 1 Solution Brief. During the Phase 2 Pitch, the Company must detail/address:

- Estimated Price/Schedule
- Rough order of magnitude (ROM) or pricing
- Anticipated Data Rights Assertions
- During the Pitch, the Government may request the additional information/detail with respect to the information provided in the Phase 1 Solution Brief.

2.5 Phase 2 Pitch: Basis of Evaluation

Individual pitches will be evaluated against the following factors:

Relevance of the pitch in addressing the AOI and the ability of the presenter to adequately address Government questions or concerns regarding the proposed application or use of the innovative commercial solution.

The solution has technical merit, adequately, and realistically addresses Government need and can be quickly incorporated into DoW systems.

Reasonableness of the ROM.

The associated delivery schedule is expeditious and realistic.

Individual pitches will be evaluated on the basis of the merit of the proposed concept in addressing the AOI and the factors above, not against any other Pitches held under the same AOI. Pitch submissions will be valid for 180 calendar days after the pitch date.

Upon completion of evaluations, the Government will notify the Company that: (1) the proposed concept/technology/solution has been selected for possible award and the entity is invited to submit a full proposal; (2) the proposed concept/technology/solution is not of interest to the Government; or (3) the proposed concept/technology/solution is of interest, but not eligible for a proposal due to availability of Government resources.

If the proposed innovative commercial solution is of interest, but not eligible for a proposal due to availability of Government resources, the Company may be contacted with a request to extend the proposal's validity for up to 180 calendar days from the pitch date. If after 180 calendar days from the pitch date (or earlier if notified by NSWC PCD), Government resources are not identified to formally move into Phase 3, the entity will no longer be eligible for an award under this AOI.

2.6 Phase 3: Proposal

The final phase of the evaluation process is the proposal request. Based upon the evaluation process detailed in Phase 1 and 2, the Government may request a full written proposal. The entity will be invited to develop and submit a full written proposal and negotiate appropriate terms and conditions. Entities may discuss ideas and questions related to the proposal with

the Government POC during the proposal writing process.

Each proposal submitted shall consist of two sections: Section 1 shall consist of the technical proposal; Section 2 shall consist of the price/cost/schedule. Proposals will be assessed by NSW PCD Technical and Contracting subject matter experts. Entities may propose their own internal terms and conditions (e.g., Service License Agreements (SLA) and/or User License Agreements (ULA)) to be considered during negotiations with the Government.

Note, there are certain terms and conditions the Government is unable to accept.

Awards made under this authority will only be issued as fixed price awards in accordance with DFARS 212.7002(b). However, projects awarded through the CSO are flexible to adopt customary industry standards where it is otherwise legal and where it meets the Government's needs.

At a minimum, written proposals must contain:

- Title Page
- Company Name, Point of Contact Name, Date, E-Mail Address, Phone, and Address and any subcontractors or team members. Include an abstract which provides a concise description of the proposal.
- Description of the proposed innovative commercial solution
- Background and objectives of the proposed solution, deliverables, and resources needed to execute. Include the nature and extent of the anticipated results. Include ancillary and operational issues such as certifications, algorithms, and any engineering/software development methodologies to be used.
- Provide a detailed project schedule that outlines the various phases of work to be accomplished within the proposed period of performance. You may refer to the Solution Brief that prompted this proposal request, but do not duplicate it.
- Identify any Government material, equipment, data, or other items necessary. Based on the AOI desired primary attributes, the proposed solution is expected to be furnished with a full-faced mask. The Government does not intend to provide Government Furnished Equipment, Facilities, or Materials to complement proposed solutions.
- Proposals shall be valid for a minimum of 180 days after submission date.

2.7 Phase 3: Price Proposal

The entity shall propose a fixed price for the item or service and provide any data or supporting information necessary for the determination of a fair and reasonable price. This can include, but is not limited to, commercial price catalog or other proprietary information to help the Government assess the proposed price.

Additionally, if proposing an OT, while not required to be specifically addressed in the proposal (with the exception of the 1/3 cost-share requirement, if applicable), the Government will review the proposal to determine if the following OT statutory requirements are met: a) Fits the definition of a prototype, b) Meets non-traditional participation/cost share requirement: Non-

traditional defense contractor contributes to a significant extent or not; if not, 1/3 cost share implementation is addressed, c) Defense Utility: Solution is applicable to a DoW platform, system or component.

SECTION 3 – AWARD

3.1 General Guidelines

Upon favorable review and available funds, the Government may choose to make an award. Only Warranted Contracting Officers or Agreements Officers may obligate the Government by entering into or modifying a binding agreement on behalf of the Government. The methods utilized to execute awards include FAR-based contract or OTA.

Awards made under this CSO will be fixed price. Multiple awards may be made to pursue similar or dissimilar solutions should they all meet the technical criteria, be selected for award, and if funds are available.

Entities must have a Unique Entity ID and CAGE Code registered in the System for Award Management (SAM) to receive award.

Companies are advised to commence SAM registration upon receipt of a proposal request. Awardees must be determined to be responsible by the Contracting or Agreements Officer and must not be suspended or debarred from award by the Federal Government nor be prohibited by Presidential Executive Order and/or law from receiving award.

Receipt of a proposal request does not guarantee receipt of award. The Government reserves the right, at any point prior to award, to cancel the request.

Upon award, awardees must register in the prescribed Government invoicing system (e.g. Wide Area Workflow).

3.2 Comptroller General Access to Information

The resulting contract or agreement will include a mandatory clause that provides for the Comptroller General the ability to examine the records of any party to the agreement or any entity that participates in the performance of the agreement, per 10 U.S.C. §4022(c)(1).

3.3 Procurement Integrity Act (PIA)

All awards under this CSO shall be treated as Federal Agency procurements for purpose of 41 U.S.C. Chapter 21. Accordingly, the CSO competitive solicitation process and awards made thereof must adhere to the ethical standards required by the PIA.

SECTION 4 - ITERATIVE PROTOTYPING

As the mission of NSWC PCD is to enable access to commercially derived disruptive

capabilities across the entirety of the DoW enterprise whether through traditional FAR based acquisition or an OTA awarded as a result of this CSO, it will allow for an iterative prototyping process.

An iterative prototyping process will allow the Government to modify, by mutual agreement, the work in a prototype project to allow the adaptation and modification of the technology being prototyped to meet additional unique and discrete purposes/mission sets. These additional unique and discrete purposes/mission sets can be generated by the original Government customer or originate with other organizations within the Federal Government.

SECTION 5 – FOLLOW-ON PRODUCTION

Upon successful completion of a prototype project under the OTA or FAR-based contract, the Government may negotiate a follow-on production contract or agreement without further competition. Any concept/technology/solution successfully proven through a Prototype OTA can be transitioned to production. The AOI posted by the Government under this CSO and initial Prototype OTA, or FAR-based contract resulting in an award, will include language providing for the potential award of a follow-on production contract or agreement as authorized under 10 U.S.C. § 4022 explicitly identifying follow-on Prototype OTA or contract as a potential outcome of a successful prototyping effort.

SECTION 6 – SUCCESSFUL COMPLETION

A transaction or a FAR-based contract for a prototype project is complete upon the written determination of the appropriate approving official (program manager, Procuring Contracting Officer, or Agreements Officer) for the matter in question that efforts conducted under a Prototype acquisition: (1) met the key technical goals of a project; (2) satisfied success metrics incorporated into the Prototype acquisition; or (3) accomplished a particularly favorable or unexpected result that justifies the transition to production. Furthermore, successful completion can occur prior to the conclusion of a prototype project to allow the Government to transition any aspect of the prototype project determined to provide utility into production while other aspects of the prototype project have yet to be completed. Any Prototype OTA or FAR-based contract shall contain a provision that sets forth the conditions under which that prototype agreement or contract must be successfully completed.

SECTION 7 – NON-GOVERNMENT ADVISORS

Non-Government advisors may be used in the evaluation of Solution Briefs, Pitches and during Proposal development and negotiations. Non-Government advisors will have signed non-disclosure agreements (NDAs) with the Government. Companies may enter into specific NDAs directly with the Non-Government advisors or their corporate entities. Submission of an offer under this CSO will constitute a grant of authority by submitting the company to the Government to allow the use of non-Government advisors to participate in evaluations of all phases of the CSO process.

The Government understands that information provided in response to this CSO is presented in confidence and may contain trade secret or commercial or financial information, and it agrees to protect such information from unauthorized disclosure to the maximum extent permitted or required by Law, to include:

18 U.S.C. 1905 (Trade Secrets Act);
18 U.S.C. 1831 et seq. (Economic Espionage Act);
U.S.C. 552(b)(4) (Freedom of Information Act);
Executive Order 12600 (Pre-disclosure Notification Procedures for Confidential Commercial Information); and,

Any other statute, regulation, or requirement applicable to Government employees. NSWCD policy is to treat all submissions as source selection sensitive information, and to disclose their contents only for the purpose of evaluation. Restrictive notices notwithstanding, during the evaluation process, submissions may be handled by support contractors for administrative purposes and/or to assist with technical evaluation.

All NSWCD and DoW support contractors performing this role are expressly prohibited from performing NSWCD sponsored technical research and are bound by appropriate NDAs.

Submissions will not be returned. The original copy of each submission received will be retained at NSWCD and all other non-required copies destroyed. A certification of destruction may be requested, provided the formal request is received at this office within five calendar days after notification that a proposal was not selected.